

An Act

ENROLLED SENATE
BILL NO. 1984

By: Haste of the Senate

and

Newton of the House

An Act relating to the practice of osteopathic medicine; amending 59 O.S. 2021, Sections 621, as amended by Section 1, Chapter 168, O.S.L. 2025, 622, as amended by Section 2, Chapter 168, O.S.L. 2025, 626, as amended by Section 5, Chapter 168, O.S.L. 2025, 632, as amended by Section 8, Chapter 168, O.S.L. 2025, 633, as last amended by Section 9, Chapter 168, O.S.L. 2025, 635.3, as amended by Section 12, Chapter 168, O.S.L. 2025, and 637, as last amended by Section 14, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Sections 621, 622, 626, 632, 633, 635.3, and 637), which relate to the Oklahoma Osteopathic Medicine Act; defining terms; updating statutory language; broadening applicability of certain requirements; expanding subpoena power of the State Board of Osteopathic Examiners; authorizing the Board to design certain examination; modifying certain disciplinary actions; modifying, adding, and removing grounds for disciplinary action; requiring certain considerations by the Board; authorizing issuance of emergency suspensions under certain conditions; specifying procedures for issuance and removal of emergency suspension; amending Section 16, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 637.3), which relates to quasi-judicial powers; updating statutory language and reference; broadening certain power of the Board; amending 59 O.S. 2021, Sections 641 and 645, as amended by Sections 17 and 24, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Sections 641 and 645), which relate to the Oklahoma Osteopathic Medicine Act; updating statutory language; modifying criteria of certain fee;

providing for electronic license renewal; broadening certain power of the Board; and providing an effective date.

SUBJECT: Osteopathic medicine

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 621, as amended by Section 1, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 621), is amended to read as follows:

Section 621. As used in the Oklahoma Osteopathic Medicine Act:

1. "Board" means the State Board of Osteopathic Examiners;
2. "Emergency" means an event, complaint, or issue that arises in which there is an immediate need for public protection as it relates to either specific individualized patient harm or an appreciable threat to the general public supported by corroborating evidence;
3. "Emergency suspension" means an immediate temporary nullification of a Board-issued license by the executive director in accordance with the Oklahoma Osteopathic Medicine Act;
4. "Incompetence" means the physician's practice falls below the applicable standard of care without proof of harm or damages;
5. "Malpractice" means the physician has a duty to exercise a standard of care and has deviated from the applicable standard of care which results in either a loss of chance or some appreciable increased risk in the potential for harm or exposure to harm;
6. "Medical negligence" means the physician has a duty to exercise a standard of care and has breached that duty by failing to exercise the applicable standard of care, and those actions caused harm to the patient;

7. "Osteopathic medicine" means a patient-centered system of health care founded by Andrew Taylor Still, M.D., D.O., and based on the theory that the body is capable of making its own remedies against disease and other toxic conditions when it is in a normal structural relationship and has favorable environmental conditions and adequate nutrition. Osteopathic medicine emphasizes prevention and wellness and utilizes generally accepted physical, pharmacological and surgical methods of diagnosis and therapy while placing strong emphasis on the importance of body mechanics and manipulative methods to detect and correct faulty structure and function;

~~3.~~ 8. "Osteopathic physician" means a person who is licensed to practice osteopathic medicine in this state; and

~~4.~~ 9. "School of osteopathic medicine" or "college of osteopathic medicine" means a legally chartered school or college accredited by the Commission on Osteopathic College Accreditation requiring:

- a. for admission to its courses of study, a preliminary education equal to the requirements established by the American Osteopathic Association, and
- b. for granting the D.O. degree, Doctor of Osteopathic Medicine, actual attendance at such osteopathic school or college and demonstration of successful completion of the curriculum and recommendation for graduation.

SECTION 2. AMENDATORY 59 O.S. 2021, Section 622, as amended by Section 2, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 622), is amended to read as follows:

Section 622. A. 1. Except as otherwise provided by this section, it shall be unlawful for any person to practice as an osteopathic physician and surgeon in this state, without a license to do so, issued by the State Board of Osteopathic Examiners; provided, that any license ~~or certificate~~ issued under the laws of this state, authorizing its holder to practice osteopathic medicine, shall remain in full force and effect. Persons who hold themselves out as osteopathic physicians in this state without a license issued

by the State Board of Osteopathic Examiners shall submit themselves to the jurisdiction of the State Board of Osteopathic Examiners.

2. Osteopathic physicians engaged in postgraduate training shall be licensed. Osteopathic physicians engaged in the internship or PGY-1 year shall be issued a resident training license ~~and all~~. All other postgraduate students shall may be issued an advanced resident training license.

B. 1. A person within or outside of this state who:

a. performs through electronic communications diagnostic or treatment services or other medical services, or

b. evaluates the medical records of and renders a medical opinion of a patient in this state, including for the purpose of medical insurance coverage,

within the scope of practice of an osteopathic physician ~~and surgeon~~ for any patient whose condition is being diagnosed or treated within this state shall be licensed in this state, pursuant to the provisions of the Oklahoma Osteopathic Medicine Act. However, in such cases, a nonresident osteopathic physician who, while located outside this state, consults on an irregular basis with a physician who is located in this state is not required to be licensed in this state.

2. Any osteopathic physician who engages in the practice of medicine or the prescription of drugs, devices, or treatments via electronic means may do so only in the context of an appropriate physician-patient relationship wherein a proper patient record is maintained including, at the minimum, a current history and physical.

3. Any commissioned medical officer of the Armed Forces of the United States or medical officer of the United States Public Health Service or the United States Department of Veterans Affairs, in the discharge of official duties whose practice is confined entirely within federally controlled facilities, who is fully licensed to practice osteopathic medicine and surgery in one or more jurisdictions of the United States shall not be required to be licensed in this state pursuant to the Oklahoma Osteopathic Medicine

Act, unless the person already holds an osteopathic medical license in this state pursuant to the Oklahoma Osteopathic Medicine Act. In such case, the medical officer shall be subject to the Oklahoma Osteopathic Medicine Act.

4. A person who performs any of the functions covered by this subsection submits themselves to the jurisdiction of the courts of this state for the purposes of any cause of action resulting from the functions performed.

C. A hospital, as defined in Section 1-701 of Title 63 of the Oklahoma Statutes, or a related institution which has the principal purpose or function of providing hospital or medical care including, but not limited to, any corporation, association, trust, or other organization organized and operated for such purpose, may employ one or more persons who are duly licensed to practice osteopathic medicine in this state without being regarded as itself practicing osteopathic medicine within the meaning and provisions of this section. The employment by the hospital or related institution of any person who is duly licensed shall not, in and of itself, be considered as an act of unprofessional conduct by the person so employed. Nothing provided herein shall eliminate, limit or restrict the liability for any act or failure to act of any hospital, any hospital's employees or persons duly licensed to practice osteopathic medicine.

D. Nothing in the Oklahoma Osteopathic Medicine Act shall be construed as to require an osteopathic physician to secure an Osteopathic Continuous Certification (OCC) as a condition of licensure, reimbursement, employment or admitting privileges at a hospital in this state. For the purposes of this subsection, "Osteopathic Continuous Certification (OCC)" shall mean a continuing education program measuring core competencies in the practice of medicine and surgery and approved by a nationally-recognized accrediting organization.

E. An osteopathic physician licensed under the Oklahoma Osteopathic Medicine Act may not hold himself or herself out as a board-certified specialist unless the osteopathic physician has successfully completed the requirements for certification by the American Osteopathic Association, the American Board of Medical Specialties, or the American Association of Physician Specialists.

However, an osteopathic physician may indicate the services offered and may state that his or her practice is limited to one or more types of services when this statement accurately reflects the scope of practice of the osteopathic physician.

SECTION 3. AMENDATORY 59 O.S. 2021, Section 626, as amended by Section 5, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 626), is amended to read as follows:

Section 626. A. 1. The State Board of Osteopathic Examiners shall, immediately after the members have qualified, elect a president, vice president and secretary.

2. The president of the Board shall preside at all meetings of the Board and perform such other duties as the Board by its rule may prescribe.

3. The vice president shall perform all the duties of the president, during the president's absence or disability.

4. The secretary shall ensure a record is kept of all proceedings of the Board and perform such other duties as are prescribed in the Oklahoma Osteopathic Medicine Act, or which may be prescribed by the Board.

B. The Board and such employees as determined by the Board shall be bonded as required by Sections 85.58Q through 85.58V of Title 74 of the Oklahoma Statutes.

C. The Board may expend such funds as are necessary in implementing the duties of the Board. The Board may hire:

1. An executive director, who may hire all necessary administrative, clerical and stenographic assistance as the Board shall deem necessary and consistent with a budget to be fixed by the Board;

2. An attorney to represent the Board in legal matters and to assist authorized state and county officers in prosecuting or restraining violations of the provisions of the Oklahoma Osteopathic Medicine Act; and

3. One or more investigators, at least one of whom shall be certified by the Council on Law Enforcement Education and Training as a peace officer, as may be necessary to implement the provisions of the Oklahoma Osteopathic Medicine Act. In addition, the investigators may investigate and inspect, through use of a Board subpoena, the nonfinancial business records of all persons licensed pursuant to the Oklahoma Osteopathic Medicine Act in order to determine whether or not licensees are in compliance with the Oklahoma Osteopathic Medicine Act and the Uniform Controlled Dangerous Substances Act or any other law, rule of this state, or any federal law or rule affecting the practice of osteopathic medicine.

D. Any licensee or applicant for license subject to the provisions of the Oklahoma Osteopathic Medicine Act shall be deemed to have given consent after presented with a Board subpoena by any duly authorized employee or agent of the Board to access, enter, or inspect the records, either on-site or at the Board office, or facilities of such licensee or applicant subject to the Oklahoma Osteopathic Medicine Act. The Board may compel any licensee or applicant through subpoena to appear and give testimony. The executive director may issue a subpoena for a substance abuse screening of a licensee or applicant with no advanced notice, with the written approval of the president of the Board, or in his or her absence a designated member of the Board. Unless the Board subpoena is legally challenged, refusal to allow such access, entry, or inspection or to provide testimony may constitute grounds for disciplinary action including the denial, nonrenewal, suspension, or revocation of a license. Upon refusal of such access, entry, ~~or~~ inspection, or testimony pursuant to this ~~section~~ subsection, the Board or a duly authorized representative may make application to enforce the Board subpoena or to obtain a search warrant from the district court where the facility or records are located to allow such access, entry, or inspection.

SECTION 4. AMENDATORY 59 O.S. 2021, Section 632, as amended by Section 8, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 632), is amended to read as follows:

Section 632. A. The examination of those who desire to practice as osteopathic physicians shall embrace those general subjects and topics, a knowledge of which is commonly and generally

required of candidates for a D.O. degree, Doctor of Osteopathic Medicine, by accredited osteopathic colleges in the United States.

B. 1. The applicant may be accepted who has successfully completed the examination sequence of the National Board of Osteopathic Medical Examiners and meets all other requirements as prescribed by the State Board of Osteopathic Examiners through rule.

2. The Board may design, and set a scoring percentage required to pass, a jurisprudence examination for individuals or groups of license applicants that is designed to test an individual's understanding of the laws, rules, and policies of this state relating to the practice of medicine by an osteopathic physician.

C. The State Board of Osteopathic Examiners shall have exclusive power and authority to determine the qualifications and fitness of all applicants for admission to practice osteopathic medicine in this state. The Board shall require that each applicant submit to a national criminal history record check as defined in Section 150.9 of Title 74 of the Oklahoma Statutes. The Board shall not disseminate criminal history record information resulting from the record check.

D. 1. The Board is authorized to obtain a national criminal history record check on osteopathic physician applicants seeking a letter of qualification for purposes of registration for expedited licensure through the Interstate Medical Licensure Compact pursuant to Section 493.7 of this title.

2. Oklahoma osteopathic physician applicants seeking a letter of qualification under the Compact shall be fingerprinted for the national criminal history record check. Applicant fingerprints shall be submitted to the Oklahoma State Bureau of Investigation and the national criminal history record check shall be conducted in accordance with Section 150.9 of Title 74 of the Oklahoma Statutes. The Bureau shall return national criminal history record check results to the Board.

3. Results obtained from the national criminal history record check shall be used solely for the screening of osteopathic physician applicants and shall be retained by the Board. The Board

shall not disseminate criminal history record information resulting from the record check.

4. This subsection shall only apply to Oklahoma osteopathic physician applicants seeking an expedited license under the Compact.

SECTION 5. AMENDATORY 59 O.S. 2021, Section 633, as last amended by Section 9, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 633), is amended to read as follows:

Section 633. A. Each applicant who has met all requirements for licensure shall be issued a full and unrestricted license to practice as an osteopathic physician and surgeon. Upon application, the State Board of Osteopathic Examiners may also issue special licenses, permits, warrants, and certificates including, but not limited to, a:

1. Temporary license;
2. Resident training license;
3. Advanced resident ~~training~~ license; or
4. Temporary critical need license under Section 6011 of this title.

B. The Board shall, through rule, establish restrictions for special licenses including, but not limited to, training licenses, to ensure that the holder practices only under appropriate circumstances as set by the Board.

SECTION 6. AMENDATORY 59 O.S. 2021, Section 635.3, as amended by Section 12, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 635.3), is amended to read as follows:

Section 635.3. A. There is established in this state a resident training license for medical school graduates. The resident training license shall be:

1. Issued by the State Board of Osteopathic Examiners to eligible physicians;

2. Issued without any continuing education requirements; and
3. Issued for no more than one (1) year.

B. If the physician's resident training program specifically approves the resident to have prescribing authority, the resident training license shall permit the physician to apply for prescribing privileges from state or federal authorities.

C. The resident training license shall not permit:

1. The physician to practice medicine beyond the scope allowed by the physician's training program; or
2. The licensee to practice independent of the residency program.

D. The resident training license is a prerequisite to participation in any training program.

E. Any person holding a resident training license is not guaranteed subsequent full or advanced resident licensure in this state as an osteopathic physician.

F. Any application for full licensure or advanced resident licensure shall be adjudged by the Board on its own merits including training, education and personal background.

G. A physician shall meet the following requirements to be eligible for a resident training license:

1. Completion of a resident training license application;
2. Payment of the application fee; and
3. Documentation from the applicant's Oklahoma training program recommending the physician and stating the applicant meets all the requirements for such licensure.

SECTION 7. AMENDATORY 59 O.S. 2021, Section 637, as last amended by Section 14, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 637), is amended to read as follows:

Section 637. A. The State Board of Osteopathic Examiners may institute disciplinary action, assess fines, enforce sanctions, or ~~refuse to admit a person to an examination or~~ may refuse to issue or reinstate or may suspend or revoke any license issued or reinstated by the Board upon proof that the applicant or holder of such a license:

1. Has obtained a license, license renewal or authorization to sit for an examination, as the case may be, through fraud, deception, misrepresentation or bribery; or has been granted a license, license renewal or authorization to sit for an examination based upon a material mistake of fact;

2. Has engaged in the use or employment of dishonesty, fraud, misrepresentation, false promise, false pretense, unethical conduct or unprofessional conduct, as may be determined by the Board, in the performance of the functions or duties of an osteopathic physician including, but not limited to, the following:

- a. obtaining or attempting to obtain any fee, charge, tuition or other compensation by fraud, deception or misrepresentation; willfully and continually overcharging or overtreating patients; or charging for visits to the physician's office which did not occur or for services which were not rendered,
- b. using intimidation, coercion or deception to obtain or retain a patient or discourage the use of a second opinion or consultation,
- c. willfully performing inappropriate or unnecessary treatment, diagnostic tests or osteopathic medical or surgical services,
- d. delegating administrative professional responsibilities to a person who is not qualified by training, skill, competency, age, or experience ~~or licensure to perform them, noting that delegation may only occur within an appropriate physician-patient relationship, wherein a proper patient record is~~

~~maintained including, but not limited to, at the minimum, a current history and physical,~~

- e. delegating medical practice responsibilities to a person who is not qualified by licensure or training to perform such responsibilities. Delegation may only occur within an appropriate physician-patient relationship in which a proper patient record is maintained,
- f. misrepresenting that any disease, ailment, or infirmity can be cured by a method, procedure, treatment, medicine or device,
- ~~f.~~ g. acting in a manner which results in termination of employment directly related to patient care, resignation while under investigation, resignation in lieu of termination, or a final disciplinary action by any professional society or, association or, medical practice group, hospital, or medical staff of such hospital in this or any other state, whether agreed to voluntarily or not, if the action was in any way related to professional conduct, professional competence, malpractice or any other violation of the Oklahoma Osteopathic Medicine Act,
- ~~g.~~ signing a blank prescription form; or dispensing, prescribing, administering or otherwise distributing any drug, controlled substance or other treatment without sufficient examination or the establishment of a physician-patient relationship, or for other than medically accepted therapeutic or experimental or investigational purpose duly authorized by a state or federal agency, or not in good faith to relieve pain and suffering, or not to treat an ailment, physical infirmity or disease, or violating any state or federal law on controlled dangerous substances including, but not limited to,
- h. prescribing, dispensing or administering opioid drugs in excess of the maximum limits authorized in Section 2-309I of Title 63 of the Oklahoma Statutes or

violating the Uniform Controlled Dangerous Substances Act, Section 2-101 et seq. of Title 63 of the Oklahoma Statutes,

~~h.~~ i. engaging in any sexual activity within a physician-patient relationship,

~~i.~~ j. terminating the care of a patient without adequate notice or without making other arrangements for the continued care of the patient,

~~j.~~ k. failing to furnish a copy of a patient's medical records upon a proper request from the patient or legal agent of the patient or another physician; or failing to comply with any other law relating to medical records,

~~k.~~ l. failing to comply with any subpoena issued by the Board,

~~l.~~ m. violating a probation agreement ~~with~~ or order from ~~this~~ the Board or any other agency, and

~~m.~~ n. failing to keep complete and accurate records of purchase and disposal of controlled ~~drugs or narcotic drugs~~ dangerous substances;

3. Has engaged in ~~gross negligence, gross malpractice or gross:~~

a. incompetence,

b. malpractice, or

c. medical negligence;

4. ~~Has engaged in repeated acts of negligence, malpractice or incompetence;~~

5. Has been finally adjudicated and found guilty, or entered a plea of guilty or nolo contendere in a criminal prosecution, for any offense reasonably related to the qualifications, functions or

duties of an osteopathic physician, whether or not a sentence is imposed, and regardless of the pendency of an appeal;

~~6.~~ 5. Has had the authority to engage in the activities regulated by the Board revoked, suspended, restricted, modified or limited, or has been reprimanded, warned or censured, probated or otherwise disciplined by any other state or federal agency whether or not voluntarily agreed to by the physician including, but not limited to, the denial of licensure, surrender of the license, permit or authority, allowing the license, permit or authority to expire or lapse, or discontinuing or limiting the practice of osteopathic medicine pending disposition of a complaint or completion of an investigation;

~~7.~~ 6. Has violated or failed to comply with provisions of any act or regulation administered by the Board;

~~8.~~ 7. Is incapable, for medical or psychiatric or any other good cause, of discharging the functions of an osteopathic physician in a manner consistent with the public's health, safety and welfare;

~~9.~~ 8. Has ~~been guilty of advertising~~ advertised by means of knowingly false or deceptive statements;

~~10.~~ 9. Has ~~been guilty of advertising, practicing, or attempting~~ advertised, practiced, or attempted to practice under a name other than one's own;

~~11.~~ 10. Has violated or refused to comply with a lawful order of the Board;

~~12.~~ 11. Has ~~been guilty of habitual drunkenness, or habitual addiction to the use of morphine, cocaine or other habit-forming drugs~~ improperly used medications, legal or illegal drugs or substances, or alcohol in any manner which could adversely impact the physician's ability to provide quality unimpaired care to patients;

~~13.~~ 12. Has ~~been guilty of~~ demonstrated personal offensive behavior, which ~~would~~ may include, but not be limited to, obscenity, lewdness, and molestation;

~~14.~~ 13. Has performed an abortion as defined by Section 1-730 of Title 63 of the Oklahoma Statutes, except for an abortion necessary to prevent the death of the mother or to prevent substantial or irreversible physical impairment of the mother that substantially increases the risk of death. The performance of an abortion on the basis of the mental or emotional health of the mother shall be a violation of this paragraph, notwithstanding a claim or diagnosis that the woman may engage in conduct which she intends to result in her death. The Board shall impose a penalty as provided in this section and in Section 637.1 of this title on a licensee who violates this paragraph. The penalty shall include, but not be limited to, suspension of the license for a period not less than one (1) year;

~~15.~~ 14. Has been adjudicated to be insane, or incompetent, or admitted to an institution for the treatment of psychiatric disorders;

~~16.~~ 15. Has knowingly provided gender transition procedures as defined in Section 2607.1 of Title 63 of the Oklahoma Statutes to a child;

~~17.~~ 16. Has violated any of the provisions of the Oklahoma Pharmacy Act, which shall be punishable by appropriate actions established in rules promulgated by the Board; ~~or~~

~~18.~~ 17. Has breached the American Osteopathic Association Code of Ethics or the Osteopathic Oath; or

18. Has violated or aided another in violating the medical marijuana laws of this state as described under Section 638.1 of this title or any rules or guidance issued under such section.

B. The Board may enter an order denying licensure or imposing any of the penalties as prescribed by rule against any applicant for licensure or licensee who is found guilty of violating any provision of subsection A of this section. In determining what action is appropriate, the Board shall first consider what sanctions are necessary to protect the public or to compensate the patient. Only after those sanctions have been imposed may the Board consider and include in the order requirements designed to rehabilitate the

physician. All costs associated with compliance with orders issued under this subsection shall be the obligation of the physician.

C. In any administrative action against a physician that does not involve revocation or suspension of a license, the Board shall have the burden, by the greater weight of the evidence, to establish the existence of grounds for disciplinary action. The Board shall establish grounds for revocation or suspension of a license by clear and convincing evidence.

D. When determining appropriate sanctions to protect the public, the Board shall consider if the osteopathic physician has previously been found by the Board to have committed multiple acts of medical negligence or malpractice.

E. The Board shall not reinstate the license ~~or certificate~~ of an osteopathic physician, or cause a license ~~or certificate~~ to be issued to a person it has deemed unqualified, until such time as it is satisfied that he or she has complied with all the terms and conditions set forth in the final order and that such person is capable of safely engaging in the practice of osteopathic medicine. ~~However, At a minimum the Board shall not issue a license to, or reinstate the license of, any osteopathic physician consider:~~

1. Whether the licensee or prospective licensee has been found by the Board to have committed repeated multiple acts of medical negligence or malpractice, regardless of the;

2. The extent to which the licensee or prospective licensee has complied with all terms and conditions set forth in the final order ~~or is capable;~~ and

3. The licensee or prospective licensee's capability of safely engaging in the practice of osteopathic medicine.

~~E. F.~~ The State Board of Osteopathic Examiners ~~shall neither refuse to renew, nor shall only suspend, nor revoke any, or refuse to renew a license, however, for any one or more of these the causes, unless specified in this section if the person accused has been given at least twenty (20) days' notice in writing of the charge against him or her and a public hearing is held by the Board, provided, three-fourths (3/4) of a quorum present at a meeting may~~

~~vote to suspend a license in an emergency situation if the licensee affected is provided a public hearing within thirty (30) days of the emergency suspension.~~

~~F. G.~~ The executive director may issue an emergency suspension to any license issued by the Board if an emergency exists and the executive director has consulted a medical advisor prior to the issuance of the emergency suspension. An emergency suspension shall be effective for a period of not more than thirty (30) days. During the period of emergency suspension, the individual affected is entitled to a hearing at the next regularly scheduled Board meeting, or a special Board meeting shall be called with at least three-fourths (3/4) of a quorum present. At the hearing the Board may vote to issue a temporary order to refuse renewal, table a renewal, or temporarily suspend a license pending a full investigation and hearing. If no hearing is held within the thirty-day period of emergency suspension, the license shall revert to its status prior to issuance of the emergency suspension.

H. The State Board of Osteopathic Examiners shall have the power to order or subpoena the attendance of witnesses, the inspection of records and premises and the production of relevant books and papers for the investigation of matters that may come before it. The presiding officer of the Board or his or her designee shall have the authority to compel the giving of testimony as is conferred on courts of justice.

~~G. I.~~ Any osteopathic physician in this state whose license to practice osteopathic medicine is revoked or suspended under this section shall have the right to seek judicial review of a ruling of the Board pursuant to the Administrative Procedures Act.

~~H. J.~~ The Board may enact rules necessary or appropriate to the performance, enforcement, or carrying out of any of the purposes, objectives, or provisions of this section.

SECTION 8. AMENDATORY Section 16, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 637.3), is amended to read as follows:

Section 637.3. A. The State Board of Osteopathic Examiners is hereby given quasi-judicial powers while sitting as a Board for the

purpose of revoking, suspending, or imposing other disciplinary actions upon the license of an osteopathic physician ~~or~~ and surgeon of this state.

B. To the extent necessary to allow the Board the power to enforce disciplinary actions imposed by the Board, in the exercise of its authority, the Board may punish ~~willful~~ violations of its orders and impose additional penalties as allowed by Section 638 of ~~Title 59 of the Oklahoma Statutes~~ this title.

SECTION 9. AMENDATORY 59 O.S. 2021, Section 641, as amended by Section 17, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 641), is amended to read as follows:

Section 641. A. All persons legally licensed to practice osteopathic medicine in this state, on or before the first day of July of each year, shall apply to the State Board of Osteopathic Examiners, on forms furnished thereby, for a renewal ~~certificate of registration entitling such licensee of such person's license~~ to practice osteopathic medicine and surgery in Oklahoma during the next ensuing fiscal year.

B. The State Board of Osteopathic Examiners may prescribe through rule the necessary information required relevant to a licensee's professional activity including, but not limited to:

1. Any action taken against the licensee for acts or conduct similar to acts or conduct described in the Oklahoma Osteopathic Medicine Act as grounds for disciplinary action;

2. Any adverse judgment, settlement, or award against the licensee arising from a professional liability claim;

3. The licensee's voluntary surrender of or voluntary limitation on any license or authorization to practice medicine and surgery in any jurisdiction including military, public health, and foreign;

4. Any denial to the licensee of a license or authorization to practice medicine and surgery by any jurisdiction including military, public health, or foreign;

5. The licensee's voluntary resignation from the medical staff of any health care institution or voluntary limitation of the licensee's staff privileges at such an institution if that action occurred while the licensee was under formal or informal investigation by the institution or a committee thereof for any reason related to alleged medical incompetence, unprofessional or unethical conduct, or mental or physical impairment;

6. The licensee's voluntary resignation or withdrawal from a national, state, or county medical society, association, or organization if that action occurred while the licensee was under formal or informal investigation or review by that body for any reason related to alleged medical incompetence, unprofessional or unethical conduct, or mental or physical impairment;

7. Whether the licensee has had any health conditions that may affect his or her ability to practice safely. Disclosures shall focus on current impairments that directly affect clinical competence or adversely affect ability to practice medicine in a competent, ethical, and professional manner, not on past or managed health conditions that do not impair professional duties; and

8. The licensee's completion of continuing medical education or other forms of professional maintenance or evaluation, including specialty board certification or recertification, during the previous registration period.

C. 1. Each application shall be accompanied by a ~~renewal~~ fee ~~in an amount sufficient to cover the cost and expense incurred by the State Board of Osteopathic Examiners,~~ as provided by rule for a renewal of the ~~person's certificate~~ physician's license to practice osteopathic medicine.

2. The Board may provide for the late renewal of a license upon payment of a late fee in accordance with Board rules.

D. 1. In addition to the payment of the annual renewal fee, each licensee applying for a renewal of the ~~certificate~~ license shall furnish to the State Board of Osteopathic Examiners proof that the person has attended at least ~~two (2) days~~ sixteen (16) hours of the annual educational program conducted by the Oklahoma Osteopathic Association, or its equivalent, as determined by the Board, in the

fiscal year preceding the application for a renewal; provided, the Board may excuse the failure of the licensee to attend the educational program in the case of illness or other unavoidable casualty rendering it impossible for the licensee to have attended the educational program or its equivalent.

2. The Board shall require that the licensee receive not less than one (1) hour of education in pain management or one (1) hour of education in opioid use or addiction each year preceding an application for renewal of a license, unless the licensee has demonstrated to the satisfaction of the Board that the licensee does not currently hold a valid federal Drug Enforcement Administration registration number. Such education may be held at the annual educational program referenced in paragraph 1 of this subsection.

E. The secretary of the State Board of Osteopathic Examiners shall send ~~a written~~ electronic notice to every person holding a ~~legal certificate~~ license to practice osteopathic medicine in this state, at least thirty (30) days prior to the first day of July each year, directed to the ~~last-known~~ electronic mail address of the licensee, notifying the licensee that it will be necessary for the licensee to pay the renewal license fee as herein provided, ~~and proper forms shall accompany the notice upon which the licensee shall make application for renewal of the certificate including instructions for the electronic renewal process.~~

F. The licensee shall attest to the veracity of the application form for license renewal. Failure to report fully and correctly shall be grounds for disciplinary action by the Board.

G. The Board shall establish a system for reviewing renewal forms. The Board may initiate investigations and disciplinary proceedings based on information submitted by licensees for license renewal.

SECTION 10. AMENDATORY 59 O.S. 2021, Section 645, as amended by Section 24, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 645), is amended to read as follows:

Section 645. A. The State Board of Osteopathic Examiners shall adopt such rules as may be necessary to implement the provisions of the Oklahoma Osteopathic Medicine Act and may establish fees

authorized but not specified in the Oklahoma Osteopathic Medicine Act.

B. The Board shall promulgate rules to identify essential elements of education and practice necessary to protect the public.

C. The Board may prescribe by rule administrative remedies, disciplinary actions, sanctions, and administrative procedures to provide remedies and disciplinary actions for licensee violations of statutory- or regulatory-prescribed unprofessional conduct, to include fines up to the limits otherwise prescribed by statute or rule.

D. The Board may provide by rule or procedures for the licensee to contest or dispute any administrative action, procedures for resolution of any such contest or dispute, and appropriate protection of private information consistent with state and federal law.

SECTION 11. This act shall become effective November 1, 2026.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 30th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____